Case No. 23-12884F
~~Case No. 23-12884~~

In the United States Court of Appeals
~~In the United States Court of Appeals~~
for the Eleventh Circuit
~~for the Eleventh Circuit~~

TIANA HILL
TIANA HILL
Plaintiff-Appellant,
v. *Plaintiff-Appellant,*
CLAYTON COUNTY, GEORGIA, *et al.*
v.
Defendant-Appellee.
CLAYTON COUNTY, GEORGIA, et al,
Defendant-Appellee.

Appeal from the United States District Court for the Northern District of Georgia,
Atlanta Division
Civil Action No. 1:21-CV-05300-TWT

Appeal from the United States District Court
for the Northern District of Georgia, Atlanta Division
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APPELLANT'S OPENING BRIEF
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CERTIFICATE OF INTERESTED PERSONS AND CORPORATE DISCLOSURE STATEMENT

Case No. 23-12884

Tiana Hill v. Clayton County

Certificate of Interested Persons and Corporate Disclosure Statement

Pursuant to Rule 26.1 of the Federal Rules of Appellate Procedure and Eleventh Circuit Rules 26.1-1, 26.1-2, and 26.1-3, Appellant Tiana Hill provides the following certificate of interested persons and corporate disclosure statement:

Pursuant to Rule 26.1 of the Federal Rules of Appellate Procedure and Eleventh Circuit Rules 26.1-1, 26.1-2, and 26.1-3, Appellant Tiana Hill provides the following certificate of interested persons and corporate disclosure statement:

Tiana Hill is aware of the following trial judge(s), attorneys, persons, associates of persons, firms, partnerships, and corporations that have an interest in the outcome of this appeal:

1. Hill, Tiana (Appellant)
2. Albert III & Associates, LLC (law firm for attorney representing Appellant)
3. Albert III, Mitchell L. (attorney for Appellant)
4. Clayton County (Appellee)
5. Clayton County Board of Commissioners (named as Appellee, but not a legal entity)
6. Clopton, Dr. Charles (Defendant; not involved in this appeal)
7. CorrectHealth Clayton, LLC (Defendant; not involved in this appeal)
8. Cruser, Mitchell, Novitz, Sanchez, Gaston & Zimet, LLP (law firm for attorney representing Appellee Sheriff Victor Hill)
9. Currie, Alison L. (attorney for Defendants CorrectHealth Clayton, LLC and Dr. Charles Clopton, not involved in this appeal)
10. Daly, Jacob E. (attorney for Appellee Clayton County)
11. Freeman Mathis & Gary, LLP (law firm for attorney representing Appellee Clayton County)
12. Hancock, Jack R. (attorney for Appellee Clayton County)

9. Currie, Alison E. (attorney for Defendants CorrectHealth Clayton, LLC and Dr. Charles Clopton; not involved in this appeal)

10. Daly, Jacob E. (attorney for Appellee Clayton County)

11. Freeman Mathis & Gary, LLP (law firm for attorneys representing Appellee Clayton County)

12. Hancock, Jack R. (attorney for Appellee Clayton County)

13. Hill, Sheriff Victor (Appellee)

14. Lavender III, Thomas E. (attorney for Defendants CorrectHealth Clayton, LLC and Dr. Charles Clopton; not involved in this appeal)

15. Lavender Hoffman Alderman, LLC (law firm for attorneys representing Defendants CorrectHealth Clayton, LLC and Dr. Charles Clopton; not involved in this appeal)

16. Sabzevari, A. Ali (attorney for Appellee Clayton County)

17. Thrash, Thomas W. (Judge of the United States District Court for the Northern District of Georgia)

18. Woodward, Karen E. (attorney for Appellee Sheriff Victor Hill)

At this time, apart from the above-named parties and entities, undersigned counsel is aware of no other person, associations, firms, partnerships, or corporations that have either a financial interest in or other interest which could be substantially affected by the outcome of this particular case.

STATEMENT REGARDING ORAL ARGUMENT
Statement Regarding Oral Argument

Ms. Hill's baby D.H. needlessly died. Ms. Hill suffered for months, pregnant, in the custody of Clayton County. Ms. Hill desires oral argument. At the center of this appeal is the interpretation of the wording of a confidential settlement agreement between Ms. Tiana Hill, CorrectHealth LLC and Dr. Charles Clopton. The reason that oral argument should be heard is that the issue of the understanding of the meeting of the minds of the parties who participated in the mediation is crucial in determining the true intent of the agreement. Oral argument would allow the Court the opportunity to fully explore this issue.

Ms. Hill's baby D.H. needlessly died. Ms. Hill suffered for months, pregnant, in the custody of Clayton County. Ms. Hill desires oral argument. At the center of this appeal is the interpretation of the wording of a confidential settlement agreement between Ms. Tiana Hill, CorrectHealth LLC and Dr. Charles Clopton. The reason that oral argument should be heard is that the issue of the understanding of the meeting of the minds of the parties who participated in the mediation is crucial in determining the true intent of the agreement. Oral argument would allow the Court the opportunity to fully explore this issue.

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STATEMENT REGARDING ADOPTION

Ms. Hill does not make any adoptions.

JURISDICTIONAL STATEMENT

Ms. Hill's claims arise under 42 U.S.C. §§ 1983, 1988 for the denial of medical care while she was detained in the Clayton County jail. The appeal is from an order enforcing a settlement agreement, which is a final order because it forecloses any additional claims. 28 U.S.C. § 1291 provides that "[t]he courts of appeals . . . shall have jurisdiction of appeals from all final decisions of the district courts of the United States." This Court has said so directly:

> In addition, we have appellate jurisdiction under 28 U.S.C. § 1291, because the order enforcing settlement agreement is a final decision.

Affiliati Network, Inc. v. Common Sense Beauty, LLC, 2019 U.S. App. LEXIS 23376, *1 (11th Cir. 2019).

The District Court entered its Order granting the motion to enforce settlement on August 3, 2023 (N.D. Ga. Doc. 101). Ms. Hill filed her Notice of Appeal on September 1, 2023 (N.D. Ga. Doc. 109), 29 days later, thereby complying with Fed. R. App. P. 4(a)(1)(A).

> A district court's order to enforce a settlement agreement is considered a final disposition subject to appeal as shown by case law.
>
> This Court has previously stated:
>
> > In addition, we have appellate jurisdiction under 28 U.S.C. § 1291, because the order enforcing settlement agreement is a final decision. *See, e.g., Mass. Cas. Ins. Co. v. Forman*, 469 F.2d 259, 260 (5th Cir. 1972) (concluding that an order enforcing a settlement was a final judgment under § 1291 because it was "a final disposition of the primary issue then existing between the parties").
>
> *Affiliati Network, Inc. v. Common Sense Beauty, LLC*, 2019 U.S. App. LEXIS 23376, *1 (11th Cir. 2019).
>
> The United States District Court for the Northern District of Georgia Atlanta Division entered its Order granting the Defendants Clayton County and Victor Hill Motion to Enforce Settlement on August 3, 2023 (N. D. Ga. Doc. 101) Ms. Tiana Hill the Plaintiff, filed her Notice of Appeal on September 1, 2023 (N. D. Ga. Doc. 109), 29 days later, thereby complying with Fed. R. App. P. 4(a)(1)(A).

STATEMENT OF THE ISSUES

1. Whether the district court erred in granting standing to the defendants and former defendants on a motion to enforce settlement agreement.
2. Whether the district court erred in interpreting the intent of the parties to the confidential settlement agreement.

STATEMENT OF THE CASE

A. Procedural History

Ms. Hill sued under 42 U.S.C. §§ 1983, 1988. On December 13, 2022, she and former defendants CorrectHealth LLC and Dr. Charles Clopton mediated and entered into a Confidential Settlement Agreement (N.D. Ga. Doc. 81-2, sealed). Defendants Clayton County and Victor Hill were invited to the mediation but chose not to attend. The District Court dismissed CorrectHealth LLC and Dr. Charles Clopton with prejudice (N.D. Ga. Docs. 69 and 71). Clayton County and Victor Hill then moved to enforce the settlement (N.D. Ga. Doc. 80), and the District Court granted the motion (N.D. Ga. Doc. 101). Ms. Hill's motion for reconsideration was denied (N.D. Ga. Doc. 116).

III. Standard of Review

B. Standard of Review

The standard of review for an appeal of an order enforcing a settlement agreement is abuse of discretion. "We review a district court's order enforcing a settlement agreement for an abuse of discretion." *Hayes v. Nat'l Serv. Indus.*, 196 F.3d 1252, 1254 (11th Cir. 1990). The construction and enforceability of a settlement agreement is governed by state law. *See id.* This Court reviews the interpretation of a settlement agreement de novo. *See Managed Care Advisory Group, LLC v. CIGNA Healthcare, Inc.*, 939 F.3d 1145, 1153 (11th Cir. 2019). *See also Resnick v. Uccello Immobilien GMBH, Inc.*, 227 F.3d 1347, 1350 (11th Cir. 2000) ("Principles governing general contract

SUMMARY OF THE ARGUMENT

Argument

I. STANDARD OF REVIEW

The court uses the applicable state's contract law to construe and enforce settlement agreements. *Vinnett v. Gen. Elec. Co.*, 271 Fed. Appx. 908, 912 (11th Cir. 2008); *Cohen v. DeKalb Cty. Sch. Dist.*, No. 1:09-cv-1153-WSD, 2009 U.S. Dist. LEXIS 110078, at *10 (N.D. Ga. Nov. 25, 2009).

II. DEFENDANTS CLAYTON COUNTY AND VICTOR HILL ARE NOT PARTIES TO THE CONFIDENTAIL SETTLEMENT AGREEMENT AND THEREFORE ARE WITHOUT STANDING TO BRING A MOTION TO ENFORCE THE SETTLEMENT AGREEMENT

Clayton County and Victor Hill were not parties to the mediation or the settlement, and the agreement names other parties as beneficiary. The former defendants Correct Health and Dr. Charles Cooper were dismissed with prejudice and the settlement agreement did not retain jurisdiction over the dismissed case, so those former defendants cannot bring a motion to enforce it. The District Court incorrectly interpreted the agreement, and its order enforcing the settlement should be reversed.

ARGUMENT

I. STANDARD OF REVIEW

The Court uses the applicable state's contract law to construe and enforce settlement agreements. *Vinnett v. Gen. Elec. Co.*, 271 Fed. Appx. 908, 912 (11th Cir. 2008); *Cohen v. DeKalb Cty. Sch. Dist.*, No. 1:09-cv-1153-WSD, 2009 U.S. Dist. LEXIS 110078, at *10 (N.D. Ga. Nov. 25, 2009).

II. DEFENDANTS CLAYTON COUNTY AND VICTOR HILL ARE NOT PARTIES TO THE CONFIDENTIAL SETTLEMENT AGREEMENT AND THEREFORE ARE WITHOUT STANDING TO BRING A MOTION TO ENFORCE THE SETTLEMENT AGREEMENT

A. The Confidential Settlement Agreement Identifies the Parties and Beneficiaries to the Agreement.

The controlling language of the Confidential Settlement Agreement expressly states in four different sections who the parties and who are the beneficiaries to the agreement.

The District Court Stated in its order to enforce the settlement that "Defendants Clayton County and Victor Hill are clearly third party beneficiaries of the Settlement Agreement. In any event the former Defendants to enforce the agreement." (N.D. Ga. 101 at p. 3) The District Court's position is unsupported by the terms of the Confidential Settlement Agreement and by case law.

The District Court stated that "Defendants Clayton County and Victor Hill are clearly third party beneficiaries of the Settlement Agreement." (N.D. Ga. Doc.

There was no payment made by Defendant Clayton County. There is no language in the confidential settlement agreement which says that Clayton County is a party to the agreement or beneficiary of the agreement.

The intention of the contract as a whole was for the benefit Ms. Hill and CorrectHealth LLC. Clayton County may be an incidental beneficiary, as such they have no standing to bring an action for enforcement of the confidential settlement agreement.

B. CorrectHealth Clayton LLC and Dr. Charles Clopton have been Dismissed With Prejudice and are unable to bring a motion to enforce the settlement agreement.

Former Defendants CorrectHealth Clayton LLC and Dr. Charles Clopton were dismissed by Order of the Court.

1. On January 27, 2023 Defendant Dr. Charles Clopton was dismissed by court order With Prejudice (N.D. Ga. Doc. 69). On February 2, 2023 Defendant CorrectHealth LLC was dismissed by court order With Prejudice from this action (N.D. Ga. Doc. 71).

B. CorrectHealth Clayton LLC and Dr. Charles Clopton Have Been Dismissed With Prejudice, and Are Unable to Bring a Motion to Enforce the Settlement Agreement

The law that the court does not retain jurisdiction after dismissal is clear. Dr. Charles Clopton and CorrectHealth LLC were dismissed by court order with prejudice (N.D. Ga. Docs. 69 and 71). Neither dismissal order retained jurisdiction, and the settlement agreement contains no such retention. Once a case is dismissed, a district court keeps jurisdiction over a settlement only if it takes one of the steps the law requires:

101 at 3). The agreement says otherwise. Its opening paragraph identifies the parties:

> "This Confidential Settlement Agreement and Release ('Settlement Agreement') is entered this 13th day of December 22, 2022, between Tiana Hill individually and as mother and next friend of [minor child name redacted], her minor child ('Plaintiff') and CorrectHealth, LLC ('Defendant')." (N.D. Ga. Doc. 81-2 at 1, sealed).

Its binding-effect clause limits enforcement to the parties:

> . . . This Settlement Agreement shall be binding upon, shall inure to the benefit of, and shall be enforceable only by the parties hereto. . . . (N.D. Ga. Doc. 81-2 at 5, sealed).

Georgia law allows a third-party beneficiary to sue on a contract. O.C.G.A. § 9-2-20. But third-party beneficiary status "depends upon the intention of the contracting parties to benefit the third party, and this intention is determined by a construction of the contract as a whole." *Am. Fletcher Mortg. Co. v. First Am. Inv. Corp.*, 463 F. Supp. 186, 195 (N.D. Ga. 1978). Clayton County made no payment under the agreement, and any benefit it receives is incidental.

"We therefore find that for a district court to retain jurisdiction over a settlement agreement where the parties dismiss the case by filing a stipulation of dismissal pursuant to Rule 41(a)(1)(A)(ii), either (1) the district court must issue

There was no payment made by Defendant Clayton County. There is no language in the confidential settlement agreement which says that Clayton County is a party to the agreement or beneficiary of the agreement.

The intention of the contract as a whole was for the benefit Ms. Hill and CorrectHealth LLC, Clayton County may be an incidental beneficiary, as such they have no standing to bring an action for enforcement of the confidential settlement agreement.

B. CorrectHealth Clayton LLC and Dr. Charles Clopton have been Dismissed With Prejudice and are unable to bring a motion to enforce the settlement agreement.

Former Defendants, CorrectHealth Clayton, LLC and Dr. Charles Clopton were dismissed by Order of the Court.

1. On January 27, 2023 Defendant Dr. Charles Clopton was dismissed by court order With Prejudice (N.D. Ga. Doc. 69). On February 2, 2023 Defendant CorrectHealth LLC was dismissed by court order With Prejudice from this action (N.D. Ga. Doc. 71).

The law that the court does not retain jurisdiction after dismissal is clear.

"We therefore find that for a district court to retain jurisdiction over a settlement agreement where the parties dismiss the case by filing a stipulation of dismissal pursuant to Rule 41(a)(1)(A)(ii), either (1) the district court must issue

"We therefore find that for a district court to retain jurisdiction over a settlement agreement where the parties dismiss the case by filing a stipulation of dismissal pursuant to Rule 41(a)(1)(A)(ii), either (1) the district court must issue the order retaining jurisdiction under *Kokkonen* prior to the filing of the stipulation, or (2) the parties must condition the effectiveness of the stipulation on the district court's entry of an order retaining jurisdiction . . . ."

Anago Franchising, Inc. v. Shaz, LLC, 677 F.3d 1272, 1280 (11th Cir. 2012).

The District Court therefore erred in holding that these former defendants have standing to enforce the agreement.

CONCLUSION

Clayton County, Victor Hill, and the former defendants CorrectHealth and Dr. Charles Clopton do not have standing to bring a motion to enforce the settlement agreement. The District Court incorrectly interpreted the intent of the parties to the Confidential Settlement Agreement.

recovery based on the non-delivery of medical care and complies with the terms of the settlement agreement.

For the reasons stated above, Ms. Hill moves this Court to reverse the District Court's Order to Enforce Settlement Agreement and to allow Ms. Hill to proceed with her claims.

For the reasons stated above Ms. Hill moves the 11th Circuit Court of Appeals to reverse the District Court's Order to Enforce Settlement Agreement and allow Ms. Hill to move forward with her recovery for her devastating injuries.

Respectfully submitted this 24th day of May 2024.

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CERTIFICATE OF COMPLIANCE

Certificate of Compliance

Pursuant to Rule 32(g) of the Federal Rules of Appellate Procedure, I certify that the foregoing **APPELLANT'S OPENING BRIEF** complies with (1) the word limit of Rule 32 (a)(7)(B) of the Federal Rules of Appellate Procedure because it contains less than 13,000 words, and (2) the typeface and type-style requirements of Rule 32(a)(5) and (6) of the Federal Rules of Appellate Procedure because it has been prepared in a proportionally spaced typeface (Times New Roman) using Microsoft Word for Microsoft 365 in 14-point font size.

Pursuant to Rule 32(g) of the Federal Rules of Appellate Procedure, I certify that the foregoing **APPELLANT'S OPENING BRIEF** complies with (1) the word limit of Rule 32(a)(7)(B) of the Federal Rules of Appellate Procedure because it contains 1,055 words, which is no more than 13,000, and (2) the typeface and type-style requirements of Rule 32(a)(5) and (6) of the Federal Rules of Appellate Procedure because it has been prepared in a proportionally spaced typeface (Liberation Serif) in 14-point.

Respectfully submitted this 24th day of May 2024.

Respectfully submitted this 24th day of May 2024.

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CERTIFICATE OF SERVICE
Certificate of Service

This is to certify that I, Mitchell L. Albert III, have this day electronically filed the foregoing **APPELLANT'S OPENING BRIEF** with the Clerk of Court using the CM/ECF system, which will automatically send electronic notification of such filing to counsel of record who are CM/ECF participants:

This is to certify that I, Mitchell L. Albert III, have this day electronically filed the foregoing **APPELLANT'S OPENING BRIEF** with the Clerk of Court using the CM/ECF system which will automatically send electronic mail notification of such filing to counsel of record who are CM/ECF participants:

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